

UPSC INDIAN POLITY

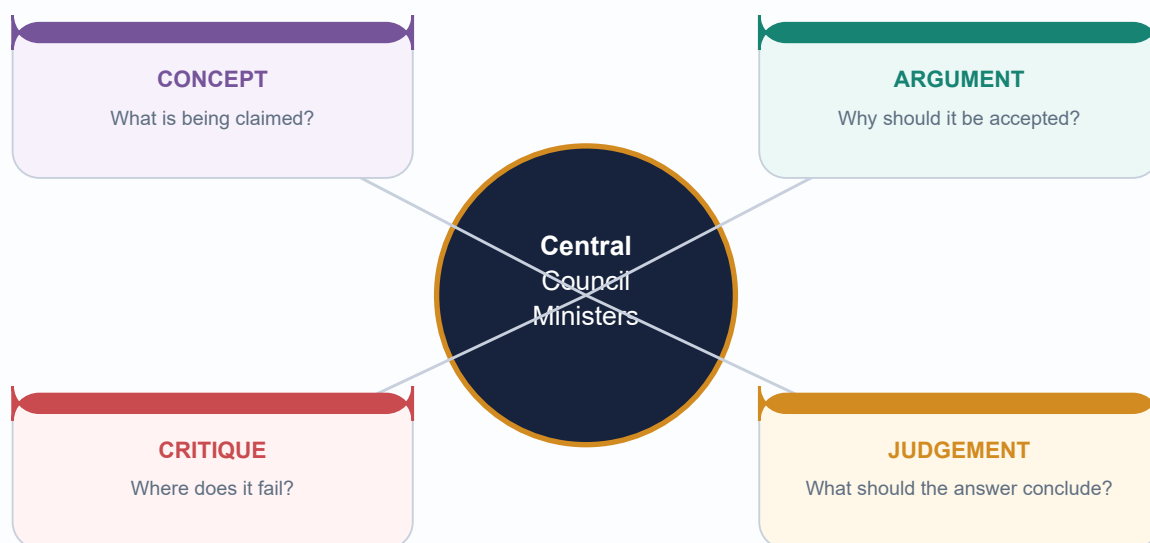
PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: PM-and-Council-of-Ministers.md + 16_PM-and-Council-of-Ministers.md

Learning cards: 22



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic · **GS Paper:** GS-II · **Grounded in:** Laxmikant Ch. 19–21.

Foundation learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• greater than □ book · □□ inference · □ current. *Depth version: advanced/16_PM-and-Council-of-Ministers.md.*

MUST-KNOW FACTS

1. greater than book · □□ inference · □ current. *Depth version: advanced/16_PM-and-Council-of-Ministers.md.*

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE → Core Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Value
PM	Real executive; head of government ; leader of LS majority
Appointed by	President (Art 75) — no fixed procedure
May be from	Either House (Indira, Deve Gowda, Manmohan = Rajya Sabha)
Non-MP limit	6 months (SC 1997)
CoM cap	≤ 15% of Lok Sabha (91st Amdt, 2003)
Key articles	74 (aid & advise), 75 (ministers), 77, 78, 88
Responsible to	Lok Sabha (collective responsibility)

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE → Snapshot

HIGH

Foundation • Core idea

GS-II Indian
Polity

INTRO & ORIGIN

□ The President is the *nominal* head; the **PM + Council of Ministers is the real executive**. **Art 74** — CoM aids & advises the President (advice **binding**, can't be questioned in court). **Art 75** — collective responsibility to the Lok Sabha: one no-confidence motion sinks the **whole** ministry.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1 □ The President is the nominal head; the PM + Council of Ministers is the real executive. Art 74 — CoM aids & advises the President (advice binding, c	Dimension 2 greater than □ PM's role tags: Morley = "primus inter pares" + "keystone of the cabinet arch"; Jennings = "the
Dimension 3 greater than sun around which planets revolve"; Ambedkar = "if any office matches the US President, it's the PM."	Dimension 4 greater than □ CoM vs Cabinet: CoM = 60-70 (all ranks, never meets together) □ Cabinet = 15-20 (senior

STATIC THEORY

- greater than □ **PM's role tags**: Morley = "*primus inter pares*" + "*keystone of the cabinet arch*"; Jennings = "the
- greater than sun around which planets revolve"; Ambedkar = "if any office matches the US President, it's the PM."
- greater than □ **CoM vs Cabinet**: CoM = **60-70** (all ranks, never meets together) □ **Cabinet = 15-20** (senior
- greater than ministers who actually decide, meet weekly).

MEMORY HOOK

greater than PM's role tags: Morley = "*primus inter pares*" + "*keystone of the cabinet arch*"; Jennings = "the
| greater than CoM vs Cabinet: CoM = 60-70 (all ranks, never meets together) □ Cabinet = 15-20 (senior

MUST-KNOW FACTS

1. The President is the *nominal* head; the **PM + Council of Ministers is the real executive**. **Art 74** — CoM aids & advises the President (advice **binding**, can't be questioned in court). **Art 75** — collective responsibility to the Lok Sabha: one no-confidence motion sinks the **whole** ministry.

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED**
/ COMPLETE → Core idea

HIGH

Foundation • Three ranks of ministers

GS-II Indian
Polity

INTRO & ORIGIN

□ **Cabinet Ministers** (top, in Cabinet) → **Ministers of State** (independent charge / attached) → **Deputy Ministers** (assist).

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. **Cabinet Ministers** (top, in Cabinet) → **Ministers of State** (independent charge / attached) → **Deputy Ministers** (assist).

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE → Three ranks of ministers

HIGH

Foundation • Must-Know Facts

GS-II Indian
Polity

INTRO & ORIGIN

□ **91st Amdt 2003**: ministers ≤ 15% of LS; defector can't be a minister.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1

□ 91st Amdt 2003: ministers ≤ 15% of LS; defector can't be a minister.

Dimension 2

□ Art 88: ministers speak in either House, vote only in their own.

Dimension 3

□ PM's resignation/death = resignation of the entire CoM.

Dimension 4

□ Cabinet Committees = extra-constitutional; Political Affairs Committee = "Super-Cabinet";

STATIC THEORY

- □ **Art 88**: ministers **speak in either House, vote only in their own**.
- □ PM's resignation/death = resignation of the **entire** CoM.
- □ **Cabinet Committees** = extra-constitutional; **Political Affairs Committee** = "Super-Cabinet";
- **Parliamentary Affairs Committee** chaired by the **Home Minister**, the rest usually by the **PM**.
- □ **Kitchen Cabinet** = informal inner circle of the PM (very powerful under Indira Gandhi).

MUST-KNOW FACTS

1. **91st Amdt 2003**: ministers $\leq 15\%$ of **LS**; defector can't be a minister.
2. **Art 88**: ministers **speak in either House, vote only in their own**.
3. PM's resignation/death = resignation of the **entire** CoM.
4. **Cabinet Committees** = extra-constitutional; **Political Affairs Committee** = "Super-Cabinet";
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MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → Must-Know Facts

HIGH**Foundation** · ☐ **Current link****GS-II** Indian Polity**NEWS TRIGGER**

☐ ☐ ☐ The **Cabinet Committee on Security (CCS)** is the apex body that clears major defence/security decisions — watch for it in any national-security news. ☐ ☐ Full article-wise depth, traps & Mains angles: **advanced/16_PM-and-Council-of-Ministers.md**

INTRO & ORIGIN

Exam-ready treatment of ☐ **Current link**.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → ☐ **Current link**

HIGH**Advanced** · **Core Foundation****GS-II** Indian Polity**INTRO & ORIGIN**

greater than **Subject**: Polity · **Tier**: Advanced (exam depth) · **GS Paper**: GS-II

Advanced learning layer: concepts → constitutional detail → UPSC application.

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1 greater than Subject: Polity · Tier: Advanced (exam depth) · GS Paper: GS-II	Dimension 2 greater than Grounded in: Indian Polity by M. Laxmikant, Ch. 19–21 (direct check of the local Sixth Revised Edition PDF).
Dimension 3 greater than □ = from source book · □□ = inference / case law · □ = current affairs.	Dimension 4 greater than Companion: basic/PM-and-Council-of-Ministers.md.

STATIC THEORY

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MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → Core Foundation

HIGH

Advanced · PART A — THE PRIME MINISTER (Art 75, 78)

GS-II Indian Polity

INTRO & ORIGIN

Exam-ready treatment of PART A — THE PRIME MINISTER (Art 75, 78).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → PART A — THE PRIME MINISTER (Art 75, 78)

HIGH

Advanced · Appointment □

GS-II Indian Polity

INTRO & ORIGIN

□ No specific procedure — **Art 75**: PM "appointed by the President." Convention: President appoints the **leader of the majority party** in the Lok Sabha. **President's discretion** in two cases: (a) **no clear majority** (largest party/coalition leader → prove confidence within a month; first used 1979, **Charan Singh**); (b) sudden **death of an incumbent PM** with no obvious successor (**Rajiv Gandhi 1984**). □ **Delhi HC (1980)**: need not prove majority *before* appointment. □ **SC (1997)**: a non-MP can be PM for **6 months**, then must become an MP. □ PM may be from **either House** — **Indira Gandhi (1966)**, **Deve Gowda (1996)**, **Manmohan Singh (2004)** were **Rajya Sabha** members (UK PM must be from the Commons).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. No specific procedure — **Art 75**: PM "appointed by the President." Convention: President appoints the **leader of the majority party** in the Lok Sabha. **President's discretion** in two cases: (a) **no clear majority** (largest party/coalition leader → prove confidence within a month; first used 1979, **Charan Singh**); (b) sudden **death of an incumbent PM** with no obvious successor (**Rajiv Gandhi 1984**). **Delhi HC (1980)**: need not prove majority *before* appointment. **SC (1997)**: a non-MP can be PM for **6 months**, then must become an MP. PM may be from **either House** — **Indira Gandhi (1966)**, **Deve Gowda (1996)**, **Manmohan Singh (2004)** were **Rajya Sabha** members (UK PM must be from the Commons).

MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → Appointment □

HIGH**Advanced · Oath, term, salary**GS-II Indian
Polity**INTRO & ORIGIN**

□ President administers oaths of **office and secrecy**. **Term not fixed** — holds office during the **pleasure of the President** (but can't be dismissed while he holds LS majority). Salary = that of an MP

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• sumptuary allowance etc.

MUST-KNOW FACTS

1. President administers oaths of **office and secrecy**. **Term not fixed** — holds office during the **pleasure of the President** (but can't be dismissed while he holds LS majority). Salary = that of an MP

MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → Oath, term, salary

HIGH

Advanced · Powers & functions □

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

Domain	Highlights
□ Council of Ministers	Recommends ministers; allocates/reshuffles portfolios ; can force a minister's resignation; chairs CoM; his resignation/death dissolves the entire CoM
□ President	Principal channel of communication (Art 78) ; advises on appointments (AG, CAG, UPSC, ECs, FC)
□ Parliament	Advises on summoning/proroguing; can recommend LS dissolution anytime; announces policies
□ Other	Chairman of NITI Aayog , National Integration Council, Inter-State Council, National Water Resources Council; chief spokesman; crisis manager; leader of the ruling party

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED**
/ COMPLETE → Powers & functions □

HIGH

Advanced · Powers & functions □

GS-II Indian
Polity

INTRO & ORIGIN

□ **Ambedkar**: "If any functionary is to be compared with the US President, it is the **PM**, not the President." Role tags: **Lord Morley** — "primus inter pares" & "keystone of the cabinet arch"; **Jennings** — "a **sun** around which planets revolve"; **Laski** — "pivot of the machinery"; **Munro** — "captain of the ship of state."

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Ambedkar: "If any functionary is to be compared with the US President, it is the **PM**, not the President." Role tags: **Lord Morley** — "primus inter pares" & "keystone of the cabinet arch"; **Jennings** — "a **sun** around which planets revolve"; **Laski** — "pivot of the machinery"; **Munro** — "captain of the ship of state."

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED**
/ COMPLETE → Powers & functions □

HIGH

Advanced · PART B — CENTRAL COUNCIL OF MINISTERS (Art 74, 75, 77, 78, 88)

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of PART B — CENTRAL COUNCIL OF MINISTERS (Art 74, 75, 77, 78, 88).

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE → PART B — CENTRAL COUNCIL OF MINISTERS (Art 74, 75, 77, 78, 88)

HIGH

Advanced · Constitutional provisions □

GS-II Indian
Polity

INTRO & ORIGIN

□ **Art 74:** CoM headed by PM to aid & advise the President (advice **binding** post-42nd/44th Amdts; advice **not inquirable** by courts). □ **Art 75:** ministers appointed by President on PM's advice; **91st Amdt (2003):** total ministers $\leq$ **15% of Lok Sabha** strength, and a member **disqualified for defection** can't be a minister; **6-month** non-MP rule; collective responsibility to the **Lok Sabha**. □ **Art 77:** business in President's name. □ **Art 88:** ministers may **speak in either House** but **vote only in their own**.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Art 74: CoM headed by PM to aid & advise the President (advice **binding** post-42nd/44th Amdts; advice **not inquirable** by courts). **Art 75:** ministers appointed by President on PM's advice; **91st Amdt (2003):** total ministers $\leq$ **15% of Lok Sabha** strength, and a member **disqualified for defection** can't be a minister; **6-month** non-MP rule; collective responsibility to the **Lok Sabha**. **Art 77:** business in President's name. **Art 88:** ministers may **speak in either House** but **vote only in their own**.

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE → Constitutional provisions □

HIGH

Advanced · Responsibility □

GS-II Indian
Polity

INTRO & ORIGIN

□ **Collective responsibility (Art 75)** — bedrock; CoM answerable to the **Lok Sabha**; a no-confidence motion forces **all** ministers (incl. RS ones) to resign; Cabinet decisions **bind all ministers** (dissent → resign; e.g. **Ambedkar 1953 over Hindu Code Bill**). □ **Individual responsibility** — ministers hold office during President's pleasure (removed on PM's advice). □ **No legal responsibility** — unlike Britain, no counter-signature requirement; courts can't probe ministerial advice.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Collective responsibility (Art 75) — bedrock; CoM answerable to the **Lok Sabha**; a no-confidence motion forces **all** ministers (incl. RS ones) to resign; Cabinet decisions **bind all ministers** (dissent → resign; e.g. **Ambedkar 1953 over Hindu Code Bill**). **Individual responsibility** — ministers hold office during President's pleasure (removed on PM's advice). **No legal responsibility** — unlike Britain, no counter-signature requirement; courts can't probe ministerial advice.

MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → Responsibility □

HIGH**Advanced · Composition & CoM vs Cabinet** □GS-II Indian
Polity**INTRO & ORIGIN**

Structured comparison from the advanced source layer.

KEY DATA

Council of Ministers	Cabinet
□ 60-70 members, all 3 ranks	15-20, cabinet ministers only
□ Never meets as a body	Meets weekly, collective functions
□ Powers "in theory"	Exercises powers in practice; directs the CoM

MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → Composition & CoM vs Cabinet □

HIGH**Advanced · Composition & CoM vs Cabinet** □GS-II Indian
Polity**INTRO & ORIGIN**

□ Three ranks: **Cabinet Ministers** (head major ministries, attend Cabinet), **Ministers of State** (independent charge OR attached; not in Cabinet), **Deputy Ministers** (assist, no independent charge). Also parliamentary secretaries (largely defunct since 1967) & occasional **Deputy PM** (*descriptive only* — SC upheld Devi Lal's 1990 oath).

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

• □ **Kitchen/Inner Cabinet** — informal body of PM + a few trusted colleagues (+ outsiders); very powerful under **Indira Gandhi**; exists in USA/UK too.

MUST-KNOW FACTS

- Three ranks: **Cabinet Ministers** (head major ministries, attend Cabinet), **Ministers of State** (independent charge OR attached; not in Cabinet), **Deputy Ministers** (assist, no independent charge). Also parliamentary secretaries (largely defunct since 1967) & occasional **Deputy PM** (*descriptive only* — SC upheld Devi Lal's 1990 oath).
- Kitchen/Inner Cabinet** — informal body of PM + a few trusted colleagues (+ outsiders); very powerful under **Indira Gandhi**; exists in USA/UK too.

MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → Composition & CoM vs Cabinet □

HIGH**Advanced · PART C — CABINET COMMITTEES** □

GS-II Indian Polity

INTRO & ORIGIN

□ **Extra-constitutional** (Rules of Business, not the Constitution); **standing & ad hoc**; set up by the **PM**; 3-8 members; mostly **chaired by PM**. They sort out issues, formulate proposals **and take decisions** (Cabinet can review). □ **Present 8 committees (2019)**: Political Affairs · Economic Affairs · Appointments · **Security** · Parliamentary Affairs · Accommodation · Investment & Growth · Employment & Skill Development. □ **Four key ones**: Political Affairs ("**Super-Cabinet**", most powerful), Economic Affairs, Appointments (higher appointments) — chaired by **PM**; **Parliamentary Affairs** — chaired by **Home Minister**. □ **Groups of Ministers (GoMs)** — ad hoc coordination bodies; **2nd ARC** urged selective use with time limits.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS

1. Extra-constitutional (Rules of Business, not the Constitution); **standing & ad hoc**; set up by the **PM**; 3-8 members; mostly **chaired by PM**. They sort out issues, formulate proposals **and take decisions** (Cabinet can review). **Present 8 committees (2019)**: Political Affairs · Economic Affairs · Appointments · **Security** · Parliamentary Affairs · Accommodation · Investment & Growth · Employment & Skill Development. **Four key ones**: Political Affairs ("**Super-Cabinet**", most powerful), Economic Affairs, Appointments (higher appointments) — chaired by **PM**; **Parliamentary Affairs** — chaired by **Home Minister**. **Groups of Ministers (GoMs)** — ad hoc coordination bodies; **2nd ARC** urged selective use with time limits.

MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED** / **COMPLETE** → **PART C — CABINET COMMITTEES** □

HIGH

Advanced • UPSC Traps

GS-II Indian
Polity

INTRO & ORIGIN

Exam-ready treatment of UPSC Traps.

Advanced learning layer: concepts → constitutional detail → UPSC application.

UPSC TRAPS

WRONG: CoM strength $\leq 15\%$ of *both Houses*

CORRECT: $\leq 15\%$ of the **Lok Sabha** (91st Amdt).

WRONG: PM must be from the Lok Sabha

CORRECT: may be from **either House** (RS PMs: Indira, Deve Gowda, Manmohan).

WRONG: Cabinet is mentioned in the original Constitution

CORRECT: inserted into **Art 352 by the 44th Amdt**; committees are **extra-constitutional**.

WRONG: Ministers can vote in both Houses

CORRECT: speak in either, **vote only in their own** (Art 88).

WRONG: CoM = Cabinet

CORRECT: CoM (60-70) is wider; **Cabinet** (15-20) is a part that actually decides.

WRONG: A non-MP can never be a minister/PM

CORRECT: allowed for **6 months**.

WRONG: Cabinet Committee on Parliamentary Affairs is chaired by PM

CORRECT: by the **Home Minister**.

MAINS ANGLE

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — **ADVANCED / COMPLETE** → UPSC Traps

HIGH

Advanced • □ CA hooks

GS-II Indian
Polity

NEWS TRIGGER

□ □ □ **Anti-defection + 15% cap (91st Amdt)** stay relevant in coalition ministry formation & Speaker defection rulings. □ □ **Cabinet Committee on Security (CCS)** is the apex body cited during national-security decisions (e.g. Operation Sindoor / strikes, ceasefire calls). □ □ Debates on "prime-ministerial government" & concentration of power recur.

INTRO & ORIGIN

Exam-ready treatment of □ CA hooks.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE**STUDY LINK**

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE → □ CA hooks

HIGH**Advanced · Mains angles**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"Indian government has become prime-ministerial rather than cabinet government." Examine. Collective responsibility in a coalition era — is Art 75 diluted? Cabinet committees & GoMs: efficient delegation or dilution of collective decision-making?

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE → Mains angles

HIGH**Advanced · Verified PYQ cross-link**GS-II Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Verified PYQ cross-link.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

□ **2024 GS-II Q3 (10 marks, 150 words)** asks how growth of the cabinet system has marginalised parliamentary supremacy. Use this file for PM/cabinet agenda control, collective responsibility and party-whip effects; use 11_Parliamentary-System.md for the complete verified-PYQ route and 17_Parliament.md for scrutiny correctives.

STUDY LINK

PM & Central Council of Ministers (Articles 74–75, +Cabinet Committees) — ADVANCED / COMPLETE → Verified PYQ cross-link

End of Register Notes — UPSC Agent / Copilot CLI